

OMB Control No: 0970-0114

Expiration date: 03/31/2027

THE PAPERWORK REDUCTION ACT OF 1995 (Pub. L. 104–13)

The purpose of this information collection is the application for CCDF funds and provides ACF and the public with a description of, and assurance about, the States' and Territories' child care programs. Public reporting burden for this collection of information is estimated to average 150 hours per response, including the time for reviewing instructions, gathering, and maintaining the data needed, and completing the form. This is a mandatory collection of information (Pub. L. 113–186), and 42 U.S.C. 9858.

An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information subject to the requirements of the Paperwork Reduction Act of 1995, unless it displays a currently valid OMB control number. The OMB # is 0970-0114 and the expiration date is 03/31/2027. If you have any comments on this collection of information, please contact ACF's Office of Child Care.



**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory South Dakota

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)

Overall Target Completion Date: 03/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Develop new policy and procedures to align with CCDF requirement on continuity of Care (12-Month Eligibility) 2.5.2a and 2.5.2c.	12/31/2024
2	Design, Develop, and test system functionality with IT team.	01/30/2026
3	Develop training materials and train staff on new IT system.	01/30/2026
4	Deploy IT functionality to process and track CCDF requirement. *Projected System go-live, and all other dates subject to change*	03/01/2026

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payment (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 05/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Department of Social Services (DSS) collects data related to payments charged to families	12/31/2025

	through the biennial Market Rate Survey. DSS will 12/31/2025 include additional questions to further data collection for additional information in regards to 3.1.2eii. Projected MRS vendor start date of October 2025.	
2	The MRS survey is projected to be complete by end of December 2025.	12/31/2025
3	South Dakota could provide this information during our data analysis period in 2026.	05/31/2026

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). PPlease note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay providers on a part-time or full-time basis or alternatively does not provide a justification that it is not a generally-accepted practice, as required by 98.45(m)(3). (Plan Question 4.4.2a)

Overall Target Completion Date: 03/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	Due to current system limitations in the legacy eligibility and enrollment system , the state is unable to pay child care providers prospectively. When CCA moves to the modern eligibility system, BEES, we will be able to accommodate prospective payments. DSS has submitted a waiver and received waiver approval as of 11/22/2024 for paying all provider types prospectively 4.4.1a. The modern eligibility system will also meet paying providers on a part-time or full-time basis 4.4.2a. Examples of levels are full time, part time, and least time.	12/31/2024

2	Design, Develop, and test functionality with IT team.	01/30/2026
3	Develop training materials and train staff on new IT system.	01/30/2026
4	Deploy IT functionality to process and track CCDF requirement. *Projected System go-live, and all other dates subject to change*	03/31/2026

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide sufficient grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Question 4.5.1i)

Overall Target Completion Date: 06/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	After further guidance from OCC, DSS will update the contracted slots contracts and policies to meet 4.5.1i. Policy Updated	03/31/2025
2	Contracts Updated	05/30/2025
3	Updated Policy and Contracts in place. *Please note that these timelines could happen sooner than dates listed. This will be dependent on admin approval process.*	06/01/2025

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not include results of the activities to investigate and recover fraudulent payments, as required by 98.68(b)(2). (Plan Question 10.2.2b)
- The Lead Agency does not include the results of the activities to impose sanctions on clients or providers in response to fraud, as required by 98.68(b)(2). (Plan Question 10.2.2e)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	DSS will update our responses to questions 10.2.2b and 10.2.2e with the necessary information as soon as an amendment can be completed.	01/31/2025